

M/s Forntier Alloy Steels Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Allahabad High Court · Division Bench · 20 February 2014 · 2014 SCC OnLine All 2727 · Writ - C No. 11083 of 2014 · **Interim order — licensee restrained from demanding additional security pending the petition**

HEADNOTE

Interim order only. A demand for additional security under Clause 4.20 of the U.P. Electricity Supply Code, 2005 was challenged; following an earlier interim order granted in a similar matter (*Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.*), and identical questions being involved in several matters, the Court, without prejudice to the parties' rights and contentions, restrained the respondents from demanding additional security from the petitioner until further orders, and directed the petition be connected and listed with the lead matter. No final view on the validity of the additional-security demand was expressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

Additional-security demand — interim restraint pending adjudication

QUESTION

(Interim) Should the licensee be restrained from enforcing an additional-security demand under Clause 4.20 pending the challenge?

HOLDING

Interim relief granted: following the interim order in the similar *Supreme Ceramics* matter and as identical questions are involved in several cases, the respondents are restrained, without prejudice to the parties' contentions, from demanding additional security from the petitioner until further orders; the petition is to be connected and heard with the lead matter.

¶ (order)

FLAG Interim order only — no final holding on the validity of the Clause 4.20 additional-security demand; connected to the *Supreme Ceramics* batch.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ADDITIONAL-SECURITY DEMAND UNDER CLAUSE 4.20

Not decided; only interim protection was granted pending final hearing along with the connected lead matter. ¶ (order)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (interim order dated 7.10.2009) Allahabad High Court	Interim order restraining demand of additional security under the Code pending adjudication.	Followed for granting identical interim relief; the present petition connected with it. ¶ (order)	Petitioner	Followed

